



CHAPTER 41.

An Act to amend the enactments relating to the Police during the present War. A.D. 1915.
[19th May 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Subsection (2) of section two of the Police Constables (Naval and Military Service) Act, 1914, shall have effect and shall be deemed always to have had effect as if the words “ if the police authority are satisfied, after consultation with the Admiralty or Army Council, that the constable possesses qualifications not possessed by ordinary recruits for rendering special service in the navy or army ” were omitted therefrom and the words “ with the consent of the Chief Officer of Police of the force to which he belongs ” were inserted in their place.

*Extension of
4 & 5 Geo. 5.
cc. 34 & 80, and
5 Geo. 5. c. 32.*

(2) The subsection which by section one of the Police Constables (Naval and Military Service) Act, 1914, is substituted for subsection (2) of section one of the Police Reservists (Allowances) Act, 1914, and subsection (2) of section one of the Irish Police (Naval and Military Service) Act, 1915, shall respectively have effect and shall be deemed always to have had effect as if the following provision were added thereto :—

“ If the man dies or is disabled whilst in naval or military service under circumstances which do not entitle his widow or children or him to any pension or allowances payable out of naval or military funds, the police authority shall have power to grant to his widow and children or to him such gratuities or pension as could have been awarded under the enactments relating to the police, had the man been a member of the police force at the time of his death or disablement.”

(3) For removing doubts it is hereby declared that the privileges to which a man may be entitled under the Police

A.D. 1915. Reservists (Allowances) Act, 1914, or the Police Constables (Naval and Military Service) Act, 1914, or the Irish Police (Naval and Military Service) Act, 1915, shall continue, and may be renewed, notwithstanding that the man is granted a temporary commission for the purposes of the present war in any of His Majesty's naval or military forces.

(4) This section shall as respects England and Scotland be construed as one with the Police Reservists (Allowances) Act, 1914, and the Police Constables (Naval and Military Service) Act, 1914, and as respects Ireland with the Irish Police (Naval and Military Service) Act, 1915.

(5) This section shall continue in operation only during the continuance of the present war.

Suspension of
right to retire
on a pension.

2. Notwithstanding any enactment to the contrary, no constable shall, during the continuance of the present war, be entitled without a medical certificate to retire and receive a pension for life except with the consent of the chief officer of the police force to which he belongs:

Provided that where a constable has given before the commencement of this Act, or hereafter gives during the continuance of the present war, written notice of his desire to retire in circumstances which, but for this section, would entitle him to retire without a medical certificate and to receive a pension for life, his right to retire at the termination of the present war with a pension not less in amount than that to which he would have been entitled had he retired at the date when such notice was given shall not be liable to forfeiture except for such misconduct as would, had he been in receipt of a pension, have rendered the pension liable to forfeiture.

Prohibition of
the establish-
ment of new
police forces
and amalgama-
tion of existing
forces.

3.—(1) During the continuance of the present war no new separate police force shall be established, and the operation of any enactment providing for the establishment of such a force shall be and shall be deemed as from the fourth day of August nineteen hundred and fourteen to have been suspended.

(2) Where the Secretary of State considers it necessary for the purpose of efficient administration, he may order that the police force established in any borough (not being a county borough) under the Municipal Corporations Act, 1882, or any Act repealed by that Act, may, for the purposes of control and discipline, be treated during the continuance of the present war as part of the police force of the county in which the borough is situate, and may for that purpose give directions as to the manner in which the amalgamation of the forces is to be effected, and what the arrangements for the control and discipline are to be.

(3) This section shall not apply to Ireland.

45 & 46 Vict.
c. 50.

4. This Act may be cited as the Police (Emergency Provisions) Act, 1915, and the Police Reservists (Allowances) Act, 1914, the Police Constables (Naval and Military Service) Act, 1914, and so much of this Act as amends those Acts, may be cited together as the Police Constables (Naval and Military Service) Acts, 1914 and 1915.

Short title.

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FOR

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